

LEGISLATURE OF THE STATE OF IDAHO  
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 812

BY RUBEL

AN ACT

RELATING TO THE REGULATION OF AUXILIARY CONTAINERS; REPEALING SECTION  
67-2340, IDAHO CODE, RELATING TO STATE PREEMPTION OF LOCAL REGULATION  
OF AUXILIARY CONTAINERS, INCLUDING PLASTIC BAGS; AND DECLARING AN EMER-  
GENCY.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section [67-2340](#), Idaho Code, be, and the same is hereby  
repealed.

SECTION 2. An emergency existing therefor, which emergency is hereby  
declared to exist, this act shall be in full force and effect on and after its  
passage and approval.